

26STCP01564 26STCP01564

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 26STCP01564 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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PATRICIA OFOEGBU,

Petitioner(s),

vs.

CALIFORNIA

BOARD OF REGISTERED NURSING, et al.,

Respondent(s).

Case No.:

26STCP01564

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondents California Board of Registered Nursing ("Board"), Loretta Melby ("Melby"), Dolores Trujillo ("Trujillo"), and Stephanie Lee ("Lee") ("Respondents") demur to petitioner Patricia Ofoegbu's ("Petitioner") petition.

The demurrer is sustained without leave to amend.

I.

Factual Allegations

Petitioner became a Registered Nurse ("RN") in 2013.

Petitioner alleges the Board has imposed discipline on her license without cause based on interactions with hostile patients, testimony from her ex-husband, and instructions from supervisors. (Pet. at 4-5.) Petitioner alleges the Board disciplined her with improper racial motivation. (Pet. at 4-5.) Petitioner has been unable to practice for the last two years after the Board initially placed her license on probation and then revoked her license. (Pet. at 5.)

II.

Procedural History

On April 21, 2026, Petitioner filed her petition. Proofs of service filed April 28, 2026 show Petitioner served the petition on the Board by electronic service through Lee on April 24, 2026 and on Lee by mail, mailed April 27, 2026. On May 19, 2026, Respondents filed their demurrer to the petition and their answer to the petition. On July 6, 2026, Petitioner filed her opposition. On July 16, 2026, Respondents filed their reply.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who

filed the pleading does not have legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain (“uncertain” includes ambiguous and unintelligible); (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct; (h) No certificate was filed as required by CCP section 411.35 or (i) by CCP section 411.36. CCP § 430.10. Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

IV.

Requests for Judicial Notice

Respondents seek judicial notice of the following exhibits:

(1) the Certificate of License History for Petitioner’s RN License, license no. 774722 (RJN Ex. A); (2) the Board’s December 14, 2022 decision to adopt Administrative Law Judge Eileen Cohn’s Proposed Decision to revoke Petitioner’s license but stay that revocation and placing Petitioner on probation for two years on conditions (RJN Ex. B); (3) the Board’s March 11, 2024 accusation initiating disciplinary action to revoke Petitioner’s license, case no. 40020210065475 (RJN Ex. C); and (4) the Board’s April 25, 2025 decision to adopt Administrative Law Judge Cindy F. Forman’s Proposed Decision to revoke Petitioner’s license (RJN Ex. D).

The requests are granted. (Evid. Code § 452(c).)

V.

Analysis

Respondents demur to the petition on the grounds that the Court lacks jurisdiction and on the grounds that the petition fails to state facts sufficient to constitute a cause of action. Both theories are premised on the contention that the statute of limitations has run on Petitioner’s claim.

As set forth below, Petitioner's action is time-barred.

The Nursing Practice Act, Business and Professions Code section 2700, et seq., governs the Board. Under Business and Professions Code section 2750, licensees of the Board are subject to disciplinary proceedings conducted under Government Code section 11500, et seq.. (Bus. & Prof. Code § 2750.)

Under Government Code section 11521, the Board may reconsider its own decision, but the power to order reconsideration expires 30 days after delivery or mailing of that decision, or the decision's effective date if earlier.^[1]

(Gov. Code § 11521.) Here, the Board's decision was mailed April 25, 2025 and effective May 23, 2025. (RJN Ex. D.) Therefore, the Board's power to reconsider expired May 23, 2025. (Gov. Code § 11521.)

Under Government Code section 11523, any petition for mandamus seeking judicial review must be filed within 30 days after the last day reconsideration can be ordered. (Gov. Code § 11523.) Here, 30 days after May 23, 2025 was June 22, 2025. As June 22, 2025 was a Sunday, the last day to file a petition was June 23, 2025. (CCP § 12.) Therefore, to bring a timely action, Petitioner was required to file her petition by June 23, 2025. (Gov. Code § 11523.)

Petitioner filed her petition on April 21, 2026, nearly a year past the close of the period to file for mandamus.

In opposition, Petitioner argues she was not aware of the Board's decision until after the time to seek judicial review had passed. However, as Respondents note, Petitioner provides email correspondence she sent demonstrating actual knowledge of the Board's decision on May 23, 2025. (Opp., Ex. B.) As noted above, May 23, 2025 was the first day of the period to file a petition for mandamus review. Without deciding that actual notice was required, the Court finds Petitioner had actual notice of the Board's decision for at least all but the first day of the period to seek judicial review.

Based on the foregoing, the petition is untimely.

VI.

Conclusion

The statute of limitations has run on Petitioner's claim. The demurrer to the petition is SUSTAINED without leave to amend.

Respondent is directed to file and serve a proposed judgment of dismissal within five court days of this order. An OSC re: dismissal is set for August 18, 2026 at 9:30 a.m. If a judgment of dismissal has been entered by that date, the OSC will be taken off calendar.

All other hearings are advanced to this date and vacated.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the

court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Certain inapplicable provisions may extend the period to order reconsideration up to, at most, 40 days after delivery or mailing of the decision. (Gov. Code § 11521.) Even assuming such extensions applied, Petitioner's action would still be untimely.